MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

TENDER FOR

OFFER DOCUMENT

MMRDA invites Bids for Leasing of land for Food Petrol Pump-2, Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No 4A,4D,81/4P,Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

BID DOCUMENT

October 2024

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Bandra-Kurla Complex, Bandra (East), Mumbai – 400 051

Tel. No. : +91 22 2659 0001/04), Fax : +91 22 2659 1264,

Web Site : Website: https://mmrda.maharashtra.gov.in

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MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Bandra-Kurla Complex, Bandra (East),

Mumbai – 400 051. Tel: 91-022-26590001/04. Fax: 91-022-26591264

E-Mail : land@mailmmrda.maharashtra.gov.in

Website: https://mmrda.maharashtra.gov.in

Tender Notice

Name of Work: Leasing of land for Food Petrol Pump-2, Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No 4A,4D,81/4P,Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

Tender Fee (Rs.)	Earnest Money Deposit (Rs.)	Tender Document Preparation and Submission		Contract period
		From Date / Time	To Date / Time	
17,700/- +18%GST	1,21,50,000/-	14/10//2024 (12.01hrs)	01/11/2024 (12.01hrs)	30 years

Note:- The Tender can be downloaded from Tendering Portal :- **https://mahatenders.gov.in/nicgep/app** Any additional information, corrigendum & help for uploading & downloading the tender, may be availed by contacting MMRDA's maha tendering service desk at the following id : support-eproc@nic.in or call us on 0120-4001 002, 0120-4001 005 and 0120-6277 787.

For further information if required you may please contact Shri. Vikas Patil, Designation: Lands & Estate Manager on Telephone number 022-2659 7403.

Date : 12/10/2024

Place : Mumbai

Sd/-

(Metropolitan Commissioner)

MMRDA

DISCLAIMER

1 Though adequate care has been taken in the preparation of this Bid Document, the Bidder should satisfy himself that the Document is complete in all respects. Intimation of discrepancy, observed if any, should be given to the office mentioned below immediately.

Metropolitan Commissioner,
Mumbai Metropolitan Region Development Authority Bandra-Kurla Complex, Bandra (East) Mumbai 400051Fax No.: 00 91 22 26591264.

If this office receives no intimation by the date, which is 7 days prior to pre-bid conference, it shall be presumed that the Bidder is satisfied that this Bid Document is complete in all respects.

2 Neither MMRDA, nor their employees make any representation or warranty as to the accuracy, reliability or completeness of the information in this Bid Document nor is it possible for MMRDA to consider the investment objectives, financial situation and particular needs of each party who reads or uses this Bid Document. MMRDA recognises the fact that certain prospective Bidders may have a better knowledge of the Project than others and thus encourages all prospective Bidders to conduct their own investigations andanalysis and check the accuracy, reliability and completeness of the information in this Bid Document and obtain independent advice from appropriate sources.

3 Neither MMRDA nor their employees will have any liability to any prospective Bidder or any other person under the law of contract, tort, the principles of restitution or unjust enrichment or otherwise for any loss, expense or damage which may arise from or be incurred or suffered in connection with anything contained in this Bid Document, any matter deemed to form part of this Bid Document and any other information supplied by or on behalf of MMRDA or their employees or otherwise arising in any way from the selection process.

4 MMRDA reserves to itself the right to reject any or all of the Bids submitted in response to this bid document at any stage without assigning any reasons whatsoever.

5 MMRDA reserves to itself the right to change any or all of the provisions of this Bid Document. Such changes will be intimated to all parties procuring this Bid Document priorto pre-bid conference.

INSTRUCTION TO BIDDER

All Bidders shall note the following:

(a) Bids that are incomplete in any respect or those that are not consistent with the requirements as specified in this bid document may be considered non-responsive andmay be liable for rejection.

(b) Strict adherence to formats, wherever specified, is required. Non-adherence to formatsshall be a ground for declaring the Bid non-responsive.

(c) All communication and information should be provided in writing and in the Englishlanguage only.

(d) The metric system shall be followed for units.

(e) All communication and information provided shall be legible, and wherever the information is given in figures, the same should also be mentioned in words. In case of conflict between amounts stated in figures and words, the amount stated in wordswill be taken as correct.

(f) No change in, or supplementary information to a Bid shall be accepted once submitted. However, MMRDA reserves the right to seek additional information from the Bidders, if found necessary, during the course of evaluation of the Bid. Non- submission, incomplete submission or delayed submission of such additional information or clarifications sought by MMRDA, may be a ground for rejecting the Bid.

(g) The Bids shall be evaluated as per the criteria specified in this Bid. However, withinthe broad framework of the evaluation parameters as stated in the bid document, MMRDA reserves the right to make modifications to the stated evaluation criteria, which would be uniformly applied to all the Bidders.

(h) The Bid (and any additional information requested subsequently) shall also bear the initials of the Authorised Signatory and stamp of the entity thereof on each page of theBid.

(i) MMRDA reserves the right to reject any or all of the Bids without assigning any reason whatsoever.

(j) Mere submission of information does not entitle the Bidder to meet an eligibility criterion. MMRDA reserves the right to vet and verify any or all

informationsubmitted by the Bidder.

(k) If any claim made or information provided by the Bidder in the Bid or any information provided by the Bidder in response to any subsequent query by MMRDA, is found to be incorrect or is a material misrepresentation of facts, then the Bid will be liable for rejection. Mere clerical errors or bonfire mistakes may be treated as an exception at the sole discretion of MMRDA and if MMRDA is adequately satisfied.

The Bidder shall be responsible for all the costs associated with the preparation of theBid. MMRDA shall not be responsible in any way for such costs, regardless of the conduct or outcome of this process.

PETROL PUMP-2, FOOD PLAZA-2 AT CH 19+900 KM ALONG WITH BUILT UP STRUCTURES & SPACE RESERVED FOR PARKING AREA AT SURVEY NO 4A,4D,81/4P,VILLAGE JASAI, TAL-URAN, DIST. RAIGAD FOR ATAL BIHARI VAJPAYEE SMRUTI NHAVA SHEVA ATAL SETU (MTHL)

1. Introduction

The proposed Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL) has been planned to facilitate decongestion of the island city by improving connectivity between Island city and main land (Navi Mumbai) and development of Navi Mumbai Region was envisaged about 30 years back. It was planned to build a bridge between Sewri on Mumbai Island and Nhava on the mainland (Navi Mumbai) in order to speed up the traffic between Mumbai and Navi Mumbai and also to facilitate the traffic from Mumbai to Pune and Goa. The scope of the project includes construction of a 22 km long, 6-lane bridge. This includes about 16.5 km long marine viaduct and 5.5 km long viaducts on land on either Atal side. The Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL) has interchanges at Sewri in Mumbai and at Shivaji Nagar, at SH-54 and at Chirle on NH-348 on Navi Mumbai side.

2. Particular of Plot & Built-up area of the Petro Pump, Food Plaza & parking space

MMRDA is now making available, on "**As-is-where-is-basis"** and "**As in present condition"**, the said land admeasuring carry out permissible activities at Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

Area detail

Total Plot Area along with Built up Area for Food Plaza- 2	6004.580 sq m
Total Built up area For Food Plaza -2	2374.275 sq m (Gr +1)
Petrol Pump-2 Plot Area	1232.590 sq m

3. Preparatory Period

The successful Bidder shall be allowed three months preparatory period from the dateof signing the Lease Deed in this respect and no rent shall be charged for this period. However this period shall be inclusive of 30 years lease period and Bidders has to fulfilall other requirements especially payment of advance rent, security deposit, etc. before signing the lease deed.

4. Offer from MMRDA

The MMRDA is absolutely seized and possessed of and is well and sufficiently entitled to the built-up premises of the Food-Court-2, Petrol Pump-2 and Reserved Space for Parking as aforesaid and intends to lease such premises together with its facilities on where it is as it is basis for a term of 30 years in consideration of the lease rent payable by the Lessee. The Draft Deed of lease to be executed and registered in this behalf is annexed hereto as Annexure II. The Draft Deed of Lease discloses the clear and marketable title of the MMRDA to these premises and its authority to dispose them by a lease. The MMRDA intends to lease the said premises, subject to the terms, conditions and covenants stated in the Draft Deed of Lease and invites offers or proposals to acquire by lease the said premises containing by measurement **6004.580 sq.mtr** in area having **2374.275** Sq. Mtrs. build up on Ground, First Floor and Space reserved for Parking Space and an area of **1232.590** Sq. Mtrs. For Petrol Pump-2 for a term of 30 years. Bidder has to offers **highest one-time upfront lease premium amount** (excluding rent, rates and taxes, etc.) amount for the entire period not less than 40,50,00,000/- for the entire period. **The** Lease Rent is 6,005/- per year. The lease rent for 1 year shall be paid in advance. Before completion of 1year period the rent of the next year rent is to be paid at least 15 days in advance. This rent amount is to be paid to MMRDA without any deductions whatsoever.

Any bid quoting a rate lower than the minimum lease premium would stand automatically rejected.

5. The Present Status of the Project

The construction of the building is nearing completion and shall be ready for use and Occupation Certificate will be obtained before handing over the area to the successful Bidder.

6. Responsibility of the Bidder

The Bidder will have the following responsibilities:-

a) To obtain the insurance of the building / Premises & equipments including lifts, etc.

b) To obtain all required licenses / permissions as may be required as per the applicable Rules / Regulations / Acts.

c) To maintain the Premises and carry out all necessary repairs as may be required from time to time and hand over the Premises in good condition at the end of the lease period.

7. Execution of Deed of Lease

The MMRDA shall execute and register the Deed of Lease in accordance with and subject to Mumbai Metropolitan Regional Development Authority (Disposal of Land) Regulation 1977, a copy whereof is annexed hereto as Annexure – II.

8. Security Deposit

i. The Bidder whose offer is found to be the highest and who shall be communicated the acceptance of his offer by the Authority shall pay the Security Deposit 5 year rent by using Online SBI Collect or by DD in favour of MMRD Fund payable at Mumbai.

ii. No interest on the Security Deposit so offered as stated above shall be payable by the Authority.

9. Earnest Money Deposit

The Bidder will have to pay an earnest money deposit along with the offer of Rs.**1,21,50,000**/-

10. Payment of Other Charges

In addition to the Security Deposit and premium, payable by the Bidder, the following charges will have to be paid separately:

a) Legal documentation charges as applicable.

b) Charges for the registration of any document under the Indian Registration Act and theStamp Duty charges

c) Charges / Deposit payable to the Municipal Corporation of Greater Mumbai / ElectricSupply Co. / Cooking Gas to obtain supply of water / Electricity / Gas, etc.,

d) All rates & taxes like Property Tax / Non-Agriculture Tax or any other taxes payable tothe respective Appropriate Authority.

e) All license fees / deposits as may be required for obtaining required licenses

11. Eligibility and Competency of the Bidder

A person fulfilling the following criteria shall be eligible to offer:-

i. They should be competent to enter into a contract under the Indian Contract Act, 1872.

ii. A company incorporated under the Indian Companies Act, 1956 authorized by Govt. of India to establish Petrol Pump / CNG station or distribute petrol / CNG / Petroleum Products.

iii. Company incorporated under the Indian Companies Act, 1956 and 2013.

iv. Partnership firm registered under the Indian Partnership Act, 1932

v. Bidder or the Joint Venture / Special Purpose Vehicle (JV / SPV) formed by one or moreBidders should have experience of minimum 5 years in running restaurant facilities/food courts and Shops anywhere in India during the last 7 years or minimum 3 years of experience of managing any national, international food chain and Shops of repute with capability of running multi-cuisine facilities in the last 5 years.

vi. The successful bidder who run food Court business can do joint venture with any person who have experience in running petrol pump business.

vii. Their gross annual turnover & minimum net worth of the last financial year as per the last audited balance sheet at the time of submission of tender should not be less than Rs. 120 Crores & Rs. 25 Crores respectively.

11.1 Scope of Work

i. Planning, Design, Engineering, Financing, Construction, Development of any permissible commercial facilities / components on Project Site(s), wherever possible along with Operation & Maintenance of the Wayside amenities at location which is reserved for the Petrol Pump on the Project Sites in accordance with the Specifications and Standards laid down by the Government of India/ Government of Maharashtra;

ii. Taking all necessary permissions and approvals, as required, from the concerned Departments/ Authorities for planning, development and Operation & Maintenance of the Petrol pump and other amenities.

iii. Sub Leasing of the spaces such as shops, food stalls, common area, parking area etc at food plaza 2.

iv. Management,Operation and Maintenance of Food Plaza 2 and Petrol Pump-2.

v. Payment of all costs, expenses and charges in connection with or incidental to the performance of the obligations related to Food Plaza-2 and Petrol Pump-2

vi. The work consists of repair/renovation/modification/ refurbishment / furnishing of the existing built up structure shall be done by the Lessee within a period of 03 months from the date of work order. The work shall be done entirely at the cost of the Bidder/Offerer with prior approval of MMRDA and no cost for the same shall be borne by MMRDA under any circumstances.

vii. Utilization of the premises for any suitable permissible purpose/activity which is permissible as per the extent DC rules such as petrol pumps, motels, wayside restaurant, service stations, highway malls, hyper malls, along with public conveniences like toilets etc.

viii. Any development on the demised premises shall be subject to necessary approvals from Competent Authority/Special Planning Authority (SPA) and permits, permissions, licenses etc. for the proposed activities to be obtained by the Lessee at its cost. All registrations, approvals, licenses shall be kept valid by the Lessee for the entire lease period.

ix. The bidder shall be permitted to renovate, refurbish etc. the entire premises at its own idea and at its own cost, conforming to the rules and regulations of the local and/ or competent authority The Successful Bidder may change the specifications as per choice and accordingly submit Area statement, Layout Plan and other details for the approval of Competent Authorities after obtaining approval from MMRDA.

x. The said premises including the newly constructed structures on the said premises, if any, shall be maintained by the Successful Bidder throughout the lease period in a neat, clean and tidy manner. The new construction of any kind on the said premises will be the property of MMRDA and shall be handed over in proper, neat and well maintained condition to MMRDA after expiry/ sooner termination of the lease agreement.

12. Project Facilities

The Selected Bidder shall be required to mandatorily develop, operate and maintain the minimum project facilities (subject to sanctioned FSI and other Development Control Regulations as per the applicable Development Control Promotional Regulation sanctioned by the Authority or any other Competent Authority who can exercise the jurisdiction over the Project Site).It may be noted that these are the minimum development obligations. The Bidders will be required to ensure adherence to the applicable Unified Development Control and Promotion Regulations for Maharashtra as sanctioned by the State Government under Section 37(1AA)(c) and Section 20(4) of the Maharashtra Regional & Town Planning Act, 1966 vide Notification No.TPS-1818/CR-236/18/DP&RP /Sec.37(1AA)(c) & Sec.20(4)/UD-13, dated 02 December 2020.

(i) For vehicles

a. Parking lot for cars

b. Garage: for minor repairs and services for vehicles

c. Toilets: separately for men, women and physically challenged

d. Restaurants / fast food / Dhaba: Cafeteria, Meals, Fast food, Handwash area

e. First aid

f. Waste receptacles: bins for waste disposal

(ii) For operation and maintenance of service area

a. Sewage disposal system

b. 24 x 7 Water and electricity facility

c. Water storage tank, recycling of wastewater

d. Septic tank and rain harvesting

e. Electricity supply and DG set.

The bidder shall be at liberty to develop other components as permissible under the Development Control Regulations/Acts or Rules of the State/Central for development of Wayside Amenities.

13. Procedure for Submitting Offers

MMRDA Tendering Portal: https://mahatenders.gov.in/nicgep/app

Digitally Signed & unconditional online Tenders are invited by the Office of the **Lands & Estate Manager**, Lands & Estate Cell, Mumbai Metropolitan Region Development Authority, Bandra (East), Mumbai-400 051, from agencies subject to the followings :-

a) The bids will be received online on above mentioned MMRDA official Tendering portal and will be opened by L. & E. Manager / Dy. L. & E. Manager, Lands & Estate Cell onscheduled date and time.

b) Bidder has to pay the Tender Cost, Earnest Money asdetailed below :-

Sr. No.	**Name of Work**	**Tender Cost (In Rs.)**	**Earnest Money Deposit (in Rs.)**	**Lea se Peri od**
(a)	Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)	17,700/- +18% GST	1,21,50,000/-	30 Years

c) Agencies who are participating in tendering for the first time shall have to obtain UserID & password from the abovementioned portal.

d) Any clarification by agency can be sought during the pre-bid Meeting.

e) The bid shall be received online on above mentioned MMRDA official Tendering portal.

f) Bidder should upload scanned attested photocopies of all documents on above mentioned MMRDA official Tendering portal & produce in original on request by MMRDA at any stage from Tender opening.

g) MMRDA reserves the right to verify financial transaction of agency in his Bank / Financial Institutions. Agency should give authority to that effect along with his accounts number and Bank/ Financial institution name & address. Any changes / modification may be communicated to MMRDA

immediately.

h) If there is any amendment in the tender, the same shall be published on following MMRDA's official Tender portals / website :

MMRDA Portal: https://mahatenders.gov.in/nicgep/app

MMRDA Website:

http://www.mmrda.maharashtra.gov.in

i) In case of any queries, Bidders may contact MMRDA's tendering service desk at support-eproc@nic.in on any working day. They can also contact on phone no 0120-4001 002, 0120-4001 005 and 0120-6277 787 for any help regarding uploading and Downloading & Technical information please contact : **Shri. Vikas Patil, Lands & Estate Manager, Land & Estate Cell** MMRDA. Telephone No.: 022–26597403.

GUIDELINES FOR SUBMISSION OF TENDER

1. Tenderer shall follow the instructions on the portal for submission of tender.
2. Tender shall be submitted online on the tendering portal in two electronic envelopes system" within prescribed schedule.

1. Envelope A (Tender Fee & EMD and Technical Bid)

Tenderer shall upload scanned copies of the following:

a) Receipt of tender fee

b) Receipt of Earnest Money Deposit

Tenderer shall upload Eligibility Documents as per Para (11) above.

2. Envelope B (Financial bid)

a) Tenderer shall quote his offer on online one-time **upfront lease premium**. At the prescribed space in e-envelop B the amount quoted by the tenderer shall be calculated by the system.

b) Upload the Digitally Signed copy of tender document.

14. Evaluation of Offers

The offers so received will be considered by MMRDA. The Eligibility Proposal submitted by the Bidder in ENVELOP – A and the Financial Proposal submitted by the Bidder in ENVELOP – B shall be opened separately. The Eligibility will be determined on the basis of the information provided and supported by the documents furnished by the Bidder in ENVELOPE-A. MMRDA will agree to lease premises to

the eligible Bidder who offers the highest rent. If the offer made by the highest Bidder shall be revoked, the Earnest Money paid by such Bidder shall be forfeited and the offer will be made to the next higher Bidder, if he agrees to increase his offer to be on parity with the highest offer. Bidder suggesting an amendment or a modification to any condition or covenant of the Draft Deed of Lease will be reckoned as an ineligible offer.

15. Validity of the offer & Earnest Money Deposit (EMD)

The offer shall remain valid for acceptance by the Authority for a period of 6 months effective from the date of opening of Envelope-I and shall not be revocable by the Bidder during such period. Any revocation contrary to such condition will entail the forfeiture of the Earnest Money deposited by the Bidder. On receipt of the written request, MMRDA will refund the EMD of the ineligible Bidder whose offer is not opened. The EMD of the eligible Bidder whose financial bid is opened will be refunded after the process is completed or after expiry of 6 months validity period, whichever is earlier.

The EMD will bear no interest. The encashment of Demand Draft/ Bank Pay Order deposited by the Bidder as the Earnest Money shall not be construed that he is eligible.

16. Extension of validity of offer

In the exceptional circumstances, prior to expiry of the validity period, the MMRDA may extend the validity period for a specific period not exceeding 3 months. For such extended period, the Bidder will be entitled to receive interest **on the EMD at 6% simple interest per annum calculated on the basis of 365 days factor.**

17. Inspection of Said Premises or any other information

Before submitting the offer, the Bidder should visit the premises for ascertaining the location, surroundings or any other matters considered relevant.

For inspection of food-court or any further information, Bidder may contact :- **Shri. Vikas Patil, Lands & Estate Manager, Land & Estate Cell**, MMRDA on any working day between 11.00 a.m. & 1.00 p.m. and 2.00 p.m. & 5.00 p.m. on Telephone 022 26597403.

18. Schedule of offer

a. Schedule :-

Sr. No.	Tender Schedule	Tenderer Schedule	Start Date & Time	End Date &Time
1.	Tender Authorization and Publishing	-	14/10/2024, 10.00	
2		Pre-Tender Meeting	22/10/2024, 15.00	
3	-	Tender Preparation and Submission	14/10/2024, 12.01	01/11/2024, 12.00
4	Opening Envelope A –Tender Fees, EMD and Technical Proposal	-	08/11/2024,, 14.01	
5	Opening Envelope B – Financial Proposal	-	Will be intimated later	

b. **Pre-Bid Meeting :-**Pre-Tender meeting will be held at 4th Floor, Committee Room of the New MMRDA Building. Those who have downloaded the Bid Document will be eligible to attend the Pre-Bid Meeting. Clarifications sought by the respective prospective Bidder shall reach this office in writing, 7 days in advance to Pre-Tender Meeting, which will be replied in the Pre-Tender Meeting and would be circulated by way of minutes to all those who purchased the tender document. Such minutes will also form part of the tender document.

19. Interpretation:- In case of any dispute or difference of opinion in the matter of the interpretation of the terms of this document or anything shall arise there from, such dispute or difference shall be decided finally by the Metropolitan Commissioner, MMRDA, and his decision shall be conclusive and binding upon the Bidder.

20. Rights of MMRDA :-

1) The Authority reserves the right to discharge cancet the tender at any stage without assigning any reason all offers received and to re-invite offers; and to modify marginally and not substantially the recitals, conditions and covenants of theDraft Deed of Lease at any time before its execution.

2) The Mumbai Metropolitan Region Development Authority reserves to itself the liberty to reject all or any offer including the highest offer without assigning any reason. Nothing contained herein shall confer any right upon a Bidder or any obligation upon the Metropolitan Authority.

3) Nothing contained in this offer document is intended to be a representation or promise enforceable at law against the Authority.

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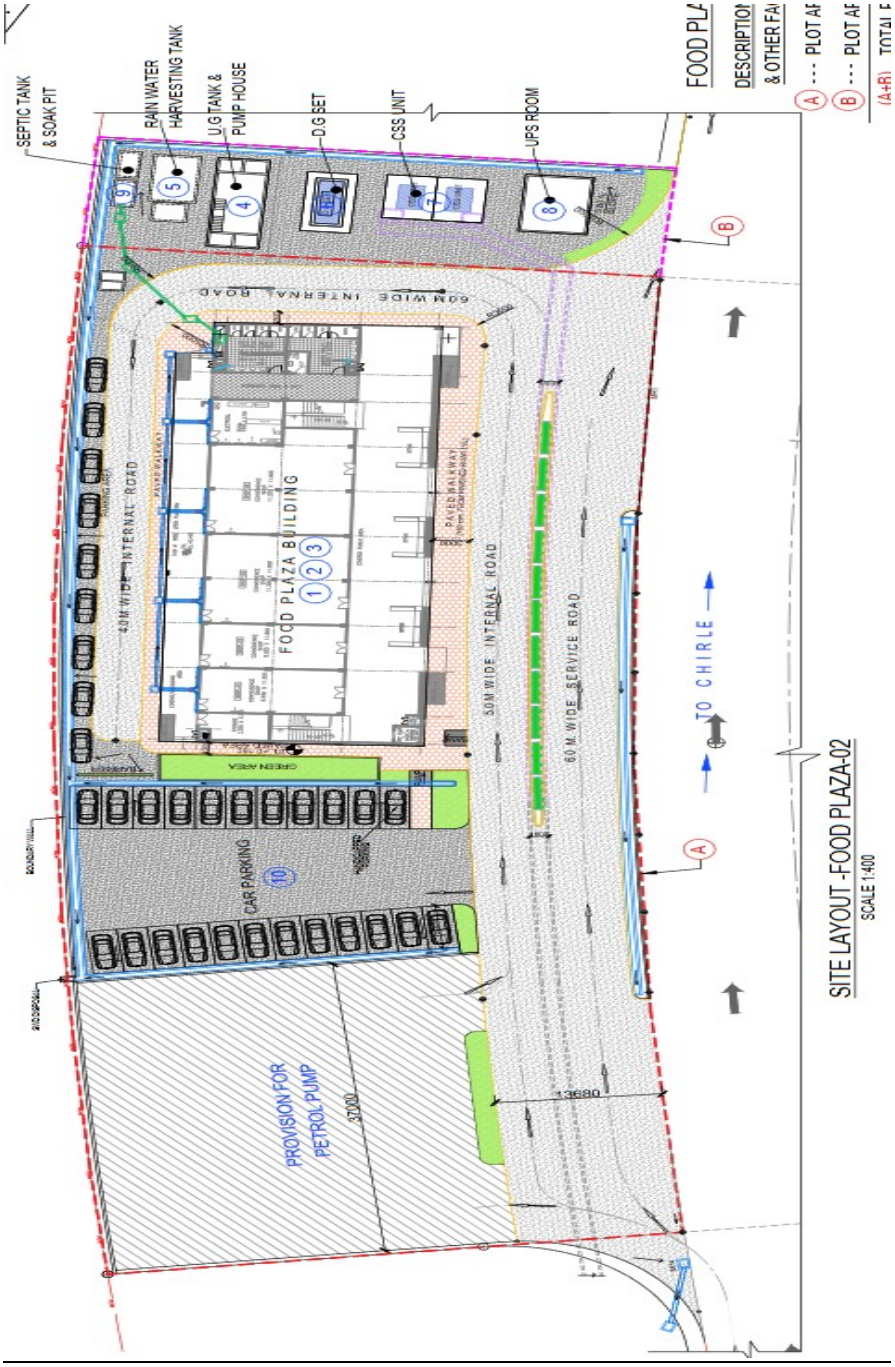
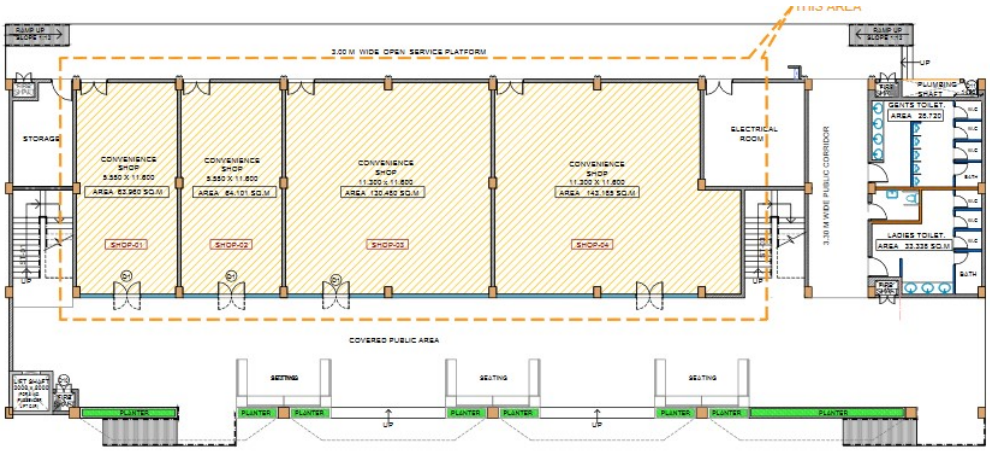
ANNEXURE - I

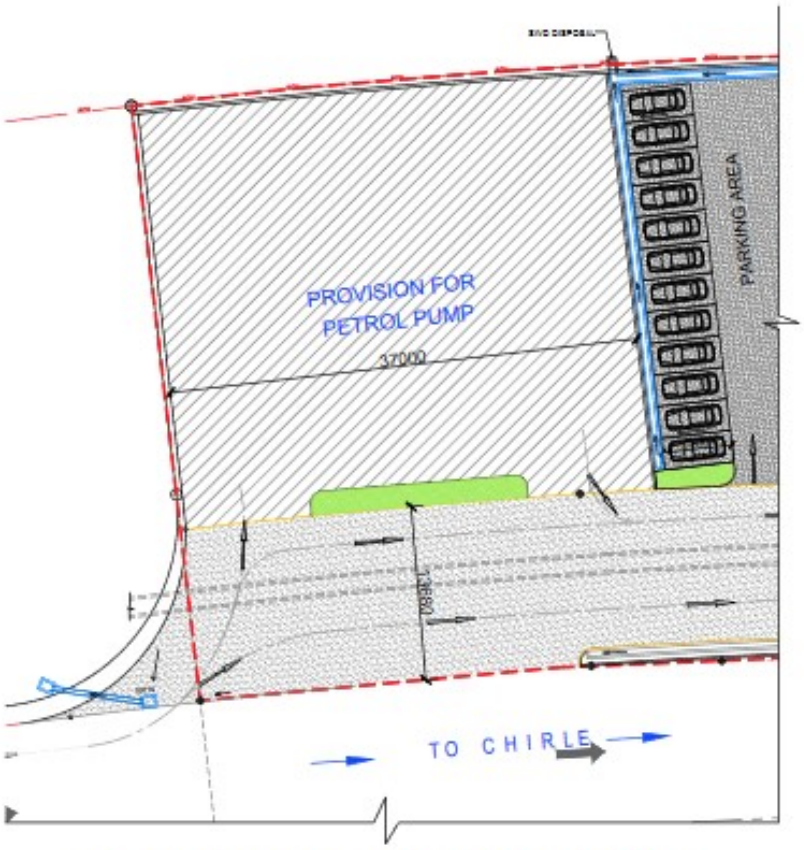
Layout Plan





GROUND FLOOR PLAN
FOOD PLAZA BUILDING-02
SCALE 1:200

FIRST FLOOR PLAN
FOOD PLAZA BUILDING-02
SCALE 1:200



LAYOUT OF PETROL PUMP -FOOD PLAZA-02

SCALE 1:400

AREA OF PETROL PUMP -1232.590 SQ.M

ANNEXURE - II

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Lease Deed

This lease made at Mumbai the day of Two Thousand Twenty_____ between the Mumbai Metropolitan Region Development Authority established under section 3 of the Maharashtra Act No. IV of 1975 called Mumbai Metropolitan Region Development Authority Act, 1974 and having its Head office at Plot No.C-14/C-15, 'E' Block, Bandra-Kurla Complex, Bandra (E), Mumbai – 400 051, hereinafter referred to as "the Lessor" (which expression shall, unless the context does not admit, include its successor or successors, and assign or assigns) of the One Part:

AND

…….....…… having his office at

……hereinafter referred to as "the Lessee"(which expression shall unless the context does not admit, include his/its/their heirs, executors and administrators/ successor or successors) of the Other Part.

WHEREAS -

1. The Government of Maharashtra has, by Government Memo No.LND/2676/67979/CR- 1073/G5, dated 20th February, 1985, in the Revenue & Forest Department (copy whereof is set out in the FIRST SCHEDULE hereunder written) sanctioned to grant to the Lessor land specified therein (hereinafter referred to as the "said land") and the Additional Collector, Mumbai Suburban District has vide order No.C/DESK/III/LND/II/B-CR-189, dated the 10th May, 1985 (copy whereof is set out in the SECOND SCHEDULE hereunder written) transferred in advance the said land to the Lessor on the 10th June, 1977.
2. The Lessor is absolutely seized and possessed of and is otherwise well and sufficiently entitled to dispose of the said land.
3. The Lessor has laid out the said land in plots of varying sizes and intends to develop them by laying out roads and other amenities to provide necessary infrastructure.
4. The Authority invited by Public Advertisement published in the publication dated ……. public offers to acquire by lease from the Authority at Ch 19+900 Km at Survey No-4a,4d,81/4p, Village Jasai, Tal-Uran, Dist.

Raigad For Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL) admeasurements by 5432.72 sq.mtr in area having 2374.275 Sq. Mtrs. build up on Ground, First Floor and Space reserved for Parking Space and an area of 1232.59 Sq. Mtrs. For Petrol Pump-2 in Para ……. of the Tender Document annexed hereto as ANNEXURE – I (hereinafter referred to as 'the said Demise Premises') for a term of Ten years in consideration of the premium and rent as stated more particularly hereinafter.

5. The Lessee submitted his offer dated ……., offering to pay to the Authority the Premium of Rs. ……/- (Rupees …… only) and the 1 year rent in advance of Rs. ……/- (Rupees only)
6. 6. The Authority has accepted the highest Tender made by the Lessee offering a premium of Rs. ……/- (Rupees …… only) and the 1 year rent in advance of Rs. ……/- (Rupees …….. only) for the said Demise Premises constructed on at Ch 19+900 Km at Survey No-4a,4d,81/4p, Village Jasai, Tal-Uran, Dist. Raigad For Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL) admeasurements by 5432.72 sq.mtr in area having 2374.275 Sq. Mtrs. build up on Ground, First Floor and Space reserved for Parking Space and an area of 1232.59 Sq. Mtrs. For Petrol Pump-2. more particularly described in Para ……. of the Tender Document annexed hereto as <u>ANNEXURE – I</u> shown thereon by a red coloured boundary line.
7. The Lessee on the offer made by the Authority vide its letter dated annexed hereto as <u>ANNEXURE – II</u>, has accepted the offer and paid to the Authority the Premium of Rs.....

(Rupees …… only) and the 1year rent in advance of Rs. ……/- (Rupees …….. only) and deposited with the Authority a sum of Rs. ……/- (Rupees ..... Only) vide Receipt No. ……, dated …… / _____ dated …….. drawn on ..... to secure the due and faithful performance of its duties and obligation hereunder as per the letter dated..... referred hereinbefore.

The Authority has accordingly agreed to grant to a lease of the said Demise Premises on theterms and conditions hereinafter appearing.

NOW THIS LEASE WITNESSETH AS FOLLOWS :

1. Description of the Land:

In consideration of the premises and of the sum Rs...../- (Rupees…… Only), paid by the Lessee to the Authority as premium and of covenants and agreements on the part the Lessee hereinafter contained, the Lessor doth hereby demise unto the Lessee the Built-up Premises called Petrol Pump-2,Food Court-2 & Space Reserved for Parking Space of a piece of land having anarea admeasurements 5432.72 sq.mtr in area having 2374.275 Sq. Mtrs. build up on Ground, First Floor and Space reserved for Parking Space and an area of 1232.59 Sq. Mtrs. For Petrol Pump-2.known as at at Ch 19+900 Km at Survey No-4a,4d,81/4p, Village Jasai, Tal-Uran, Dist. Raigad For Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL) the plan annexed hereto as ANNEXURE – I and shown thereon

2. Covenants by the Lessee : The Lessee with intent to bind all persons into whosoever hand the demise premises may come doth hereby covenant with the Authority as follows:

(a) *To pay rates and taxes :* To pay all existing and future taxes, rates and assessments, land revenue and out goings of every description for the time being payable either by landlord or the tenant or by the occupier in respect of the demised premises and anything for the time being thereon. The stamp duty and the registration charges and all other charges payable in connection with the execution of the Deed of Lease shall be borne wholly and exclusively by the Lessee.

(b) *Not to affix or display signboards, advertisements etc :* Not at any time during the continuance of the said term, to affix display or permit to affix or display on or from the demised premises any signboard, sky-sign, neon sign without or with illumination or otherwise unless the consent in writing of the Metropolitan Commissioner has been previously obtained thereto.

(c) *Alterations :* That no alterations or addition shall at any time be made to any facade or elevation of any building or erection and standing on the demised premises or architectural features thereof except with the previous approval in writing of the said Officer.

(d) *To repair :* Throughout the said term at the Lessee's expense well and substantial to repair, pave, cleanse and keep in good and substantial repairs and condition (includingall usual and necessary internal and external painting, colour and white washing) to the satisfaction of the said Officer the said building and the premises and drains, compound walls and fences thereunto belonging and all fixtures and all additions thereto.

(e) *To enter and inspect :* To permit the Metropolitan Commissioner and the officers, surveyors, workmen or others employed by him from time to time and at all reasonable times of the day during the term hereby granted after a week's previous notice to enter into or upon the demised premises and to inspect the state of repairs thereof and if, upon such inspection it shall appear that any repairs or any works are necessary, they orany of them may, by notice to the Lessee, call upon him to execute the repairs or such works and upon his failure to do so within a reasonable time the Lessor may execute them at the expense, in all respect, of the Lessee.

(f) *Nuisance :* Not to do or permit anything to be done on the demised premises which may be a nuisance, annoyance or disturbance to the owners, occupiers or residents of other premises in the vicinity.

(g) *User :* To use the demised premises for the purpose of Urban Plaza for verity of Shops, Food Court & Restaurant(Gr. & First Floor) /Super Market ,Petrol Pump and Space reserved for Parking Space of the Lessee only and for no other purpose.

(h) *Indemnity :* To indemnify and keep indemnified the Lessor against any and all claims for damage, which may be caused to any adjoining buildings or other premises in consequence of the erection of the aforesaid works and also against all payments whatsoever which during the progress of the work may become payable or be demanded by the Municipality or any local authorities in respect of the said works or of anything done under the authority herein contained.

(i) *Delivery of possession after expiration :* At the expiration or sooner determination of the said terms, quietly to deliver unto the Lessor the demised premises and all erections and buildings then standing or being thereon. The inventory of the fitting fixtures, etc. shall be done at the time of handing over of the premises to the successful Bidder / Lessee and at the time of handing over the possession of the said premises back, the Lessee shall be duty bound to handover the premises back to Authority in the state and condition as is being handed over to Lessee and after settling all the dues of the

Authority or any other dues payable by the Lessee to any Authority whatsoever.

(j) *Not to assign :* Not to assign, underlet or sublet or part with the possession of the demised premises or any part thereof or any interest therein without the previous written consent of the Metropolitan Commissioner, Consent may be granted by the Metropolitan Commissioner subject to payment by the Lessee of a sum equal to 10 percent of the stamp duty chargeable on the instrument of intended transfer under the Bombay Stamp Act, 1958 and further subject to such conditions as he may impose in public interest. Provided that nothing shall be payable in case of the first transfer of the demised premises or a part thereof.

(k) *Change in status of the Lessee :* No change in the proprietary or partnership or a limited or unlimited company or of a registered or unregistered partnership firm to whom the plot is leased shall be recognized without the previous written consent of the Metropolitan Commissioner.

(l) *Notice in case of death :* In the event of death of the Lessee, the person to whom the title shall be transferred as heir or otherwise shall cause notice thereof to be given to the Authority within three months from such death.

(m) *Compliance by Lessee :*The Lessee shall comply with all the rules, regulations, enactments, as may be applicable for operation of the leased premises during the lease period. Further Lessee shall indemnify and keep indemnified the Authority & it official against any non-compliance by the Lessee with respect to the operation of theleased premises.

3. Additional Covenants by the Lessee : In addition to and not in derogation or substitutionof any of its other obligations under this Lease, the Lessee shall perform the following covenants and obligations :

(a) Security Deposit : -

(i) The Lessee has, for due and faithful performance of his obligations hereunder furnished to the Authority a Security Deposit 10% of Quoted Price in advance by using online SBI collect or through DD in favour of MMRD fund payable at Mumbai. The Security Deposit so offered shall, subject to the Authority's rights to receive amounts, if any, due from the lessee under this lease, be discharged and returned to the lessee.

(ii) No interest on Security Deposit shall be payable by the Authority. The lessee shall use the demised premised for the purpose of Food Court -2 ,Petrol Pump-2 and Space reserved for parking space as described in the Tender Document annexed hereto as ANNEXURE – I.

(b)Additional facilities :-

(i) The Lessee shall be allowed to carry out necessary alternation to the demised premises and / or provide Additional Facilities as per applicable rules, with the prior approval of the Metropolitan Commissioner. Such alternations and Additional Facilities shall not however cause harm to or be dangerous to the stability of the building.

(ii) At least one month before carrying out such alternation to the demised premises and /or providing such Additional Facilities, the lessee shall submit to the Metropolitan Commissioner a proposal (hereinafter referred to as Modification Proposal) clearly outlining such alternations and / or Additional Facilities and its impact on the structural stability of the building and shall obtain his approval and also all other approvals or consents or permissions required to be obtained in law.

(c)*Operation and Maintenance :-*The Lessee shall operate, manage and maintain the demised premises until reoccupied by the Authority in accordance with the provisions of this Lease.

(d)*Insurance :-* The Lessee shall at his cost and expense, insure the demised premises against all insurable risks during the terms of lease in accordance with Good Industrial Practice. The Lessee shall so insure the demised premises in the joint names of the Lessee and the Authority.

(e)*Upfront Lease Premium and Lease Rent :-* The Lessee shall pay lease rent as of Rs...../- (Rupees.....) per year for contract period. starting from the date of the execution of Agreement, rent at the above rate will be paid in advance at least 15 days before the commencement of next year without any deductions whatsoever and Lease Premium of _____/- as quoted by lessee.

4. ***Recovery of Rent as Land Revenue*: -** If and whenever any part of the premium or the renthereby reserved shall be in arrears, the same may be recovered from the Lessee as arrears of land revenue under the provisions of the Mumbai

Metropolitan Region Development Authority Act, 1974, or any modification thereof for the time being in force.

5. ***Re-entry:-*** If the said rent hereby reserved shall be in arrears for the space of thirty days whether the same shall have been legally demanded or not, or if and whenever there shall be a breach of any of the covenants by the Lessee hereinbefore contained, or if the Lessee shall be adjudicated insolvent or bankrupt or shall renounce his character as such by setting a title in the third person or claiming a title in himself the Lessor may re-enter upon any part of the demised premises in the name of the whole and thereupon the term hereby granted shall absolutely cease and determine and in that case no compensation shall be payable to the Authority on account of improvements built or carried out on the demised premises, or claimed by the Lessee on account of improvements built or made. PROVIDED ALWAYS, that except for non-payment of rent as aforesaid, the power of re-entry hereinabove contained shall not be exercised unless and until the Metropolitan Commissioner on behalf of the Authority shall have given to the Lessee or left on some part *of the demi*sed premises a notice in writing of his intention to enter and of the specific breaches of covenant in respect of which the re-entry is intended to be made and default shall have been made by the Lessee in remedying such breach or breaches within three months after the giving or leaving of such notice.

6. ***Summary eviction of persons unauthorisedly occupying the Demised Land on determination of the Lease* :-** If, on the determination of the lease, any person is found to be unauthorisedly occupying or wrongfully in possession of the demised premises, it shall be lawful for the Metropolitan Commissioner to secure summary eviction of such person in accordance with the provisions of the Mumbai Metropolitan Region Development Authority Act, 1974, or any modification thereof for the time being in force.

7. ***Discontinuation of Lessee :-***In the event Lessee decides to discontinue the Lease **OR** fails to continue the lease & use of premises till completion of 30 year tenure for any reason what so ever, the Lessee shall have to give minimum three months prior notice to do so, and in such eventuality, the Authority shall be

entitle to forfeit the Security Deposit.

8. ***Notice and Demand*:-** Any demand for payment or notice requiring to be made upon or given to the Lessee shall be sufficiently made or given if sent by the Authority through the post by registered letter addressed to the Lessee at the demised premises and any demand ornotice sent by post shall be deemed to have been delivered in the usual course of post.

9. ***Marginal Note* :-** The marginal notes do not form part of the Lease and shall not be referredto for construction or interpretation thereof.

IN WITNESS WHEREOF the Lessor and the Lessee have hereunto set and subscribed their hands and seal the day and year first above written.

SCHEDULE FIRST & SECOND AND ANNEXURE I TO III

SIGNED AND DELIVERED for and on
Behalf of the **Mumbai Metropolitan**
Region Development Authorityby the
hand of –
Shri. Shri. Vikas Patil, L. & E. Manager,
in the presence of -

1._____
2._____

SIGNED AND DELIVERED by the within Named Lessee
……
by the hand of –
Shri. ……, ……
its duly authorized Official in the presence of -

ANNEXURE – III

MMRDA (LAND DISPOSAL) REGULATIONS, 1977

THE MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY (DISPOSAL OF LAND) REGULATIONS, 1977[1]

In exercise of powers conferred by Section 50, read with [2]Sub-Section (2) of Section 3 of the Bombay Metropolitan Region Development Authority Act, 1974, and all other powers enabling it in this behalf, this Bombay Metropolitan Region Development Authority makes the following Regulations, namely:

1. **Short title, commencement and application**
   a) These Regulations may be called the Bombay Metropolitan Region Development Authority (Disposal of Land) Regulations, 1977.
   b) They shall come into force on the date of their publication in the *Maharashtra Government Gazette*[3].
   c) They shall apply to disposal by the Authority of any land vested in it by the Government or acquired by it by private treaty or under the provisions of Chapter VIII of the Bombay Metropolitan Region Development Authority Act, 1974 (Act No. IV of 1975) or any other law for the time being in force.

2. **Definitions**
   In these Regulations, unless the context otherwise requires:
   a) "Act" means the Bombay Metropolitan Region Development Authority Act, 1974 (Maharashtra Act No. IVof 1975).
   b) "Authority" means the Bombay Metropolitan Region Development Authority established under Sub-section (1) of Section 3 of the Act.
   [4]c)
   d) "Form" means a form appended to these Regulations.
   e) "Metropolitan Commissioner" means a Metropolitan Commissioner appointed under Section 11 of the Act and includes any other officer authorized by the Metropolitan Commissioner to exercise the powers and to perform the functions of the Metropolitan Commissioner under these Regulations.
   f) The words and expressions used in these Regulations but not defined therein shall have the same meanings respectively assigned to them in the Act, and if not so assigned, then the same meanings respectively assigned to them in the Maharashtra Regional and Town Planning Act, 1966 (Maharashtra Act XXXVII of 1966).

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[1]Adopted by Resolution No. 138 of the Bombay Metropolitan Region Development Authority passed at its thirteenth meeting held on the 30th November, 1977.

[2]The words and figures "and Sub-Section (i) of Section 9" deleted vide Authority's Resolution No. 254 passed in the 34th meeting held on 22nd June, 1984.

[3] Published in the *Maharashtra Government* Gazette, Part IV-C on the 16th November, 1978.

[4] Sub-Rule (c), Regulation No. 2 deleted vide Authority's Resolution No. 254, passed in its 34th meeting held on 22nd June, 1984.

3. **Powers of the [1] (Authority) to dispose of land**

Subject to any directions given by the Authority from time to time, the [1] (Authority) may dispose of any land by a lease to be granted in consideration of premium or rent or both for a term not exceeding 80 years and in accordance with these Regulations.

4. **Manner of disposal of land**

The [1](Authority) may dispose of land by:

i) holding public auction, or
ii) inviting tenders by public advertisements, or
iii) making offers to or accepting offers from the Government, Local Authority or Public Sector Undertaking, or
iv) making offers or accepting offers from a public charitable trust for the purpose of providing education or medical relief to the public, or
v) inviting applications by public advertisement on the basis of predetermined premium and or other considerations and accepting any of these applications by drawing lots and, in the case of inadequate applications or 'first come first served' basis.

as it may determine from time to time:

Provided that land intended to be used for providing dwelling units to persons, who are classified by [1](Authority) from time to time, as belonging to Economically Weaker Section or Low Income Group, as the case may be, shall not be disposed of except under Clause (v) above.

Provided further that the [1](Authority) may dispose of land intended to be used for providing dwelling units to persons who are classified by it, from time to time, as belonging to Middle Income Group, under Clause (v) above.

5. **Disposal of land by public auction**

Where the [1] (Authority) determines to dispose of any land by public auction, there shall be held a public auction in accordance with the terms and conditions, specified in Form 'A'.

6. **Disposal of land by inviting Tenders by public advertisement or on application by the Government, Local Authority or Public Sector Undertaking**

Where the [1](Authority) determines to dispose of any land by inviting public tenders or by accepting offers from the Government, Local Authority or Public Sector Undertaking, there shall be presented a tender or an offer in Form 'B'.

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[1]The word "Authority" is substituted for the words "Standing Committee" vide Authority's Resolution No. 254, passed in the meeting held on 22nd June, 1984.

7. **Disposal of land by offers to Government, Local Authority or Public Sector Undertaking**

Where the [1](Authority) determines to dispose of land by making offers to the Government, Local Authority or Public Sector Undertaking, the offers shall be made by the Metropolitan Commissioner in such form as he may decide, incorporating the terms and conditions of offers determined by the [1](Authority) [2](which shall include the condition that the offer shall remain open and valid for acceptance for a period of'.30 days and shall lapse if it remains -unaccented by the expiry of this period; provided that it shall be lawful for the Metropolitan Commissioner to renew any lapsed offer on an additional condition that the Government, Local Authority or Public Sector Undertaking, as the case may be, shall pay interest at the rate of 18% per annum over the premium specified in the lapsed offer with effect from the date on which the lapsed offer was made; provided further that nothing contained herein shall authorize the Metropolitan Commissioner to renew any lapsed offer after three months of its lapse).

8. **Disposal of land by inviting applications by public advertisement on the basis of predetermined premium and/or other considerations**

Where the [1](Authority) determines to dispose of any land by inviting applications from the public on the basis of pre-determined premium and/or other considerations, there shall be presented an application in Form 'C'.

9. **Payment of premium**

(i) Half of the premium shall be paid within [3]one month from the time an offer/tender is accepted under any of the foregoing Regulations and the balance within [4] two months thereafter; provided that in case of Government or Local Authority or Public Sector Undertaking such time limits shall be one month and three months, respectively; provided further that the Metropolitan Commissioner may, in his absolute discretion, grant extension of time for payment of first half of the premium by the Government and none else up to 2 months.

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[1]The word "Authority" is substituted for the words "Standing Committee" vide Authority's Resolution No. 254, passed in the meeting held on 22nd June, 1984.

[2]These words were inserted by vide Authorities Resolution No. 181 passed in its 23rd meeting held on 23rd March, 1981.

[3]The words "one month" has been substituted for the figure and word "15" days *vide* Authority's Resolution No 713 passed in its 86th meeting held on 10.3.97.

[4]The words "two months" has been substituted for the words "one month" vide Authority's Resolution No.713 passed in its 86th.meeting held on 10.3.97.

The Metropolitan Commissioner may, in his absolute discretion, grant extension of time for payment of the balance premium up to a maximum of [5]12 months of the date of acceptance on payment of interest for the extended period [6]at such rate as may be determined by the [1](Authority) from time to time. The time limit so specified for the payment of premium shall be intended to be of the essence of the contract and if such time limit shall not be observed, the contract shall become violable at the option of the Metropolitan Commissioner without prejudice to other rights, powers and immunities of the Authority.

[7](iA) If half of the premium shall not be paid within one month or in case of Government within two months, if permitted by the Metropolitan Commissioner, the Agreement concluded with the Authority shall stand determined and the Earnest Money deposited by the Intending Lessee along with its tender or offer shall stand forfeited to the Authority without prejudice to the rights and powers of Authority to recover compensation for loss or damage, if any suffered in consequence of such breach of the Intending Lessee to so pay half of the premium to the Authority. Likewise, if the balance premium shall not be paid within twelve months as provided hereto before, the Agreement concluded with the Authority shall stand determined and the Earnest Money paid by him along with the tender or offer together with 25 per cent of the premium shall be forfeited to the Authority without prejudice to the rights and powers of the Authority to recover compensation for loss or damage, if any, suffered in consequence of such default of the Intending Lessee.

[8](ii) Notwithstanding anything contained in the foregoing Clause to the contrary, if there shall be a scheme formulated and sanctioned by the Authority***[9] to erect or to finance erection of a building or buildings on land agreed to be leased to the Government, a Local Authority or a public Sector Undertaking to sub serve the development of the Metropolitan Region or any part thereof and to grant in lease such building or buildings to the concerned Government, Local Authority or Public Sector Undertaking it shall be lawful ***[9] to agree with the concerned Government, Local Authority or Public Sector Undertaking to recover the premium agreed to be paid in consideration of the lease of such building or buildings in yearly installments, not exceeding ten in number.

[8]

[10] (iii) deleted

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[5] The words "twelve months" has been substituted for the words "six months" vide Authority's Resolution No 713 passed in its 86th.meeting held on 10.3.97.

[6] The words, " at such rate as may be determined by the Authority from time to time ", has been substituted for the figures and words " at the rate of 15 per cent per annum or at such other rate as may be determined by the Authority from time to time.

[7] Regulation 9 (iA) is inserted vide Authority's Resolution No 713 passed in its 86th meeting held on 10.3.97.

[8] Original Clause (ii) is renumbered and new Clause (iii) and new Clause (ii) inserted vide Authority's Resolution No. 182 passed at its 23rd meeting held on 23rd March,1981.

[9] The words "authorizing the Standing Committee' and the words "Standing Committee" were deleted vide Authority's Resolution No.254 passed at its 34th meeting held on 22nd June, 1984.

[10] The original sub clause 9 (iii) deleted; vide Authority's Resolution No 713 passed in its 86th meeting held on 10.3.97.

[2]10. **Execution of Deed of Lease and delivery of possession of Land :**
After the Authority has received the premium in full and the interest, if any, accruing thereon, there shall be executed Deed of Lease in Form "D" by the Authority and the possession of the land shall be delivered by the Authority to the Lessee. The Stamp Duty and the Registration charges and all other charges payable in connection with the execution of the Deed of Lease shall be borne wholly and exclusively by the Lessee.

Explanation - The Metropolitan Commissioner may at the application of the Lessee, in writing, permit the execution of the Deed of Lease concurrently with the payment of premium by or on behalf of the Lessee and the execution of the Deed of Mortgage by the Lessee in favor of the Financial Institutions to whom the Lessee intends to mortgage the land to secure a loan to be borrowed towards the payment of such premium to the Authority.

[3]11. **Extension of time stipulated for construction of building or development of land**:-

If the Lessee shall not perform and observe the limitation of time provided in the Deed of Lease in Form "D" for the construction of the intended building or otherwise development of land leased to him for reasons beyond his control, the Metropolitan Commissioner may permit extension of such time on payment of the additional premium at the following rates :-

Upto 1 year	..	25 per cent of the premium
Between 1 and 2 years	..	35 per cent of the premium
Between 2 and 3 years	..	40 per cent of the premium.

[4]11(A). If the Metropolitan Commissioner shall refuse to permit extension of time, under the foregoing Regulation or shall find the Lessee of having committed breach of any condition of covenant during the limitation of time provided in the foregoing Regulation, the Metropolitan Commissioner may forfeit and determine the Lease, provided that in the event of such determination of the Lease, 25 percent of the premium paid by the Lessee to the Authority shall be forfeited and the remaining 75 per cent of such premium shall be refunded to him; provided further that the power to so determine the Lease shall not be exercised unless and until the Metropolitan Commissioner shall have given to the Lessee or left on some part of the demised premises a notice in writing of his intention to do so and of the specific breach of the covenants or conditions in respect of which forfeiture is intended and default shall have been made by the Lessee in remedying such breach or breaches within three months from the service of notice on him or the notice being left on the demised premises.

12. **Delegation of powers**
It shall be lawful for the '(Authority) to delegate any of its powers, functions and duties to the Metropolitan Commissioner.

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[1]The word "Authority" is substituted for the words "Standing Committee" vide Authority's Resolution No.254, passed in its 34th meeting held on 22nd June, 1984.
[2] The Regulation 10 were substituted vide Authority's Resolution No 713 passed in its 86th meeting held on 10.3.97.
[3] The Regulation 11 were substituted vide Authority's Resolution No 713 passed in its 86th .meeting held
on 10.3.97.
[4] The Regulation 11 (A) were inserted vide Authority's Resolution No 713 passed in its 86th .meeting held on 10.3.97.

13. Where, under any of these Regulations, anything is required to be done by public advertisement, it shall be done by publication of the advertisement in two newspapers, one in English and the other in Marathi language, having circulation in the Region.

14. The [1](Authority) may, from time to time, modify for general application or for application in a specific case, any Form annexed hereto to carry out all or any of the purpose of these Regulations.

15.Notwithstanding anything contained herein to the contrary, but subject to any law for the time being in force, it shall be lawful for the [1](Authority) to dispose of any land by sale or lease for a term, not exceeding eighty years or otherwise in favor of the Government or Local Authority or a Public Sector Undertaking for further development, where necessary, and disposal, on the terms and conditions to be determined by it.

[2]16. **Relaxation of Regulations:-**

The Authority may in public interest and for reasons to be recorded in writing relax generally or specially any of the foregoing Regulations.

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[1] The word "Authority" is substituted for the words "Standing Committee" vide Authority's Resolution No.254, passed in its 34th meeting held on 22nd June, 1984.

[2] The Regulation 16 were inserted vide Authority's Resolution No 713 passed in its 86th meeting held on 10.3.97.

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

FORM 'D'
(Please see Regulation No.10)

Lease Deed

This lease made at Mumbai..... the.....day of.....Two Thousand.....between the Bombay Metropolitan Region Development Authority established under section 3 of the Maharashtra Act No. IV of 1975 called the Mumbai Metropolitan Region Development Authority Act, 1974 and having its Head Office at Plot No. C-14/ C-15, E Block, Bandra-Kurla Complex, Bandra (E), Mumbai- 400 051, hereinafter referred to as, "the Lessor" (which expression shall, unless the context does not admit, include its successor or successors, and assign or assigns) of the One Part:

AND

1. (Name of person).....When the Lessee is an individual of (Address and Occupation).....

2. (Name of person)..... When the Lessees are more than of (address and Occupation) ..... one individual.

3. (Name of person).....When the Lessee is a registered firm.

of (address).....

and (Name of person).....

of (Address).....

and (Name of person).....

of (Address).....

All carrying on business in partnership at (address of

the firm or Syndicate).....

.....

under the name and style of (Name of the firm Syndicate).

.....

registered under.....Act.

Under Registration No.....
Dated.....granted

By.....and having its

Principal place of business at.....
.....

.....

4.) (Name of Company or statutory body..... When the Lessee is a
& a company incorporated under the Companies Act, registered company or a

5) 1956 a body Corporate constituted and established statutory body.
with perpetual succession under the
.....
.....
.....Act)

hereinafter referred to as "the Lessee" (which expression shall unless the context does not admit, include his/its/their heirs, executors and administrators/successor or successors) of the Other Part.

WHEREAS-

1. The Government of Maharashtra has, by Government Resolution No..... dated the.....in the .....the Department (copy whereof is set out in the First Schedule hereunder written)sanctioned to grant to the Authority land specified therein and the Collector,.....has by his Order No. .....dated the ..... (copy whereof-is set out in the Second Schedule hereunder written) transferred the said land to the Authority on the.....

2. The Authority is absolutely seized and possessed of and is otherwise well and sufficiently entitled to dispose of the said land.

3. The Authority has laid out the said land in plots of varying sizes and intends to develop them by laying out roads and other amenities to provide the necessary infrastructure.

4. The Authority has for, the purpose of disposing of the said plots of land leases, held a public auction on.....subject to rules and regulations (copy whereof is set out in the Third Schedule hereunder written)/invited tenders by a public advertisement/made offers to the Government, Local Authority, Public Sector Undertaking, Public Utility Supplier/invited offers by public advertisements.

5. The Authority has accepted the highest bid made by the Lessee at the said auction offering a premium of Rs..... the Authority has accepted the tender, dated .....of the Lessee offering a premium of Rs.....the Authority has accepted the offer dated.....of the Lessee offering a premium of Rs.....the Licensee has accepted the offer dated.....of the Authority granting the lease for a premium of Rs.....for/or one of the plots of land, being Plot No.....situated and lying in Survey No.....of the Registration, Sub-District of Registration District of.....and contained by admeasurements .....sq.m. (containing maximum permissible floor space of ..... sq.m.) described in the Fourth Schedule hereunder written and more particularly delineated on the plan annexed hereto and shown thereon by a red colored boundary line and the Authority has accordingly agreed to grant to the Lessee the said plot of land on the terms and conditions hereinafter appearing.

NOW THIS LEASE WITNESSETH AS FOLLOWS:

1. *Description of Land*- In consideration of the premises and of the sum of Rs.....(Rupees.....) paid by the Lessee to the Lessor as premium and of the covenants and agreements on the part of the Lessee hereinafter contained, the Lessor doth hereby demise unto the Lessee all that piece of land known as Plot No.....in the.....within the .....containin g by admeasurements.....sq.m. or thereabout (containing maximum permissible floor space of .....sq. mt.. bounded as follows, that is to say:

On or towards the North by

On or towards the South by

On or towards the East by

On or towards the West by

and delineated on the plan annexed hereto and shown thereon by a red colour boundary line together with the building and erections now or at any time hereinafter standing and being thereon AND TOGETHER WITH all rights, easements and appurtenances thereto belonging to the Lessor EXCEPT AND RESERVING unto lessor all mines and minerals in and under the said land or any part thereof to HOLD the land and premises hereinabove expressed to be hereby demised (hereinafter referred to as "the demised premises") unto the lessee for the term of 80 years computed from the .....day of..... 2000..... .....subject nevertheless to the provisions of the Mumbai Metropolitan Region Development Authority Act, 1974, and the Rules and Regulations there under.

2. **The Lessee hereby agrees to observe and perform the following conditions that is to say:-**

(a) ***Submission of Plans for Approval*:-** That the Lessee shall within three months of the date hereof submit to the Chief, Town & Country Planning Division of the Authority, or any other officer duly empowered in this regard (hereinafter referred to as 'the said Officer") for his approval the plans, elevations, sections, specifications and details of the buildings hereby agreed by the Lessee to be erected on the said land and the Lessee shall, at his own cost and as often as he may be called upon to do so, amend all or any such plans and elevations and, if so required, shall produce the same before the Chief, Town & Country Planning Division of the Authority, or the said Officer and shall supply him such details, as may be called for, of plans, elevations and specifications and when such plans, elevations, details and specifications and when such plans, elevations, details and specifications shall be finally approved by the Chief, Town & Country Planning Division or the said Officer and signed by him, the Licensee s hall sign and leave with the said Officer three copies thereof and also three signed copies of any further conditions or stipulations which may be agreed upon between the Licensee and the said Officer.

(b) ***Fencing During Construction*:-** The said plot of land shall be fenced during construction by the Lessee at his expense in a manner approved by the Chief, Town and Country Planning Division or the said Officer.

(c) ***No Work to Begin Until Plans, are Approved*:-**No work shall be commenced or carried on which infringes any of the Development Control Regulations and Building Regulations set out in the Fifth Schedule hereto as also Municipal or any other regulations so far as the same are applicable to the said land or to the use for which the said land and/or building thereupon is going to be put to; being the subject of these presents, or until the said plans, elevations, sections, specifications and details shall have been so approved as aforesaid, and thereafter he shall not make any alterations or additions unless such alterations and additions shall have been previously, in like manner, approved.

(d) Time Limits for Commencement and Completion of Construction Work:- That the Lessee shall within three months from the receipt of approval of his plans and specifications of building or buildings intended to be erected on the land, commence, and within a period of four years from the date of this lease at this own expense and in a substantial and workman-like manner and with sound materials and in compliance with the said Development Control. Regulations and Building Regulations and all Municipal Rules, bye-laws and regulations applicable hereto and in strict accordance with the approved plans, elevations, sections, specifications and details, to the satisfaction of the Authority and conforming to the building lines marked on the plan hereto annexed, and the Development Control Regulations and Building Regulations, build and completely finish fit for occupation a building to be used as building with all requisite drains and other proper convenience thereto.

(e) Extension of time stipulated for construction of building or development of land:-

(i) If the Lessee shall not perform and observe the limitation of time mentioned in clause 2(d) above for the construction of the intended building or otherwise development of land leased to him for reasons beyond his control, the Metropolitan Commissioner may permit extension of such time on payment of the additional premium at the following rates :-

Upto 1 year ..	**25 per cent of the premium**
Between 1 and 2 years	**..35 per cent of the premium**
Between 2 and 3 years	**..40 per cent of the premium**

(ii) If the Metropolitan Commissioner shall refuse to permit such extension of time or shall find the Lessee of having committed breach of any condition or covenant during limitation of time mentioned in clause 2 (d) hereto before, the Metropolitan Commissioner may forfeit and determine the Lease; Provided that in the event of such determination of the Lease, 25 per cent of the premium paid by Lessee to the Authority shall stand forfeited and the remaining 75 per cent of such premium shall be refunded to him; Provided further that the power to so determine the Lease shall not be exercised unless and until the Metropolitan Commissioner shall have given to the Lessee or left on some part of the demised premises a notice in writing of his intention to do so and of the specific breach of the covenant or condition in respect of which forfeiture is intended and default shall have been made by the Lessee in remedying such breach within three months from the service of notice on him or the notice being left on the demised premises.

3. ***Covenants by the Lessee:-*** The Lessee with intent to bind all persons into whosoever hand the demised premises may come cloth hereby covenant with the Lessor as follows:

(a) To pay rates and taxes - To pay all existing and future taxes, rates, assessments, land revenue and out goings of every description for the time being payable either by landlord or tenant or by the occupier in respect of the demised premises and anything for the time being thereon.

(b) Not to excavate - Not to make any excavation upon any part of the said land hereby demised not remove any stone, sand, gravel, clay or earth there from except for the purpose of forming foundations of buildings or for the purpose of executing any work pursuant to the terms of this Lease.

(c) Not to erect beyond the building line - Not to erect any building, erection or structure except a compound wall and steps, and necessary adjuncts thereto as hereinafter, provided on any portion of the said land outside, the building line shown upon the said plan.

(d) Not to affix or display signboards, advertisements, etc. - Not at any time

during the continuance of the said term, to affix display or permit to affix or display on or from the demised premises any signboard, sky-sign, neon sign or advertisement without or with illumination or otherwise unless the consent in writing of the Metropolitan Commissioner has been previously obtained thereto.

(e) To build only as per agreement- Not at any time during the period of this demise to erect any building, erection or structure on any portion of the said land except in accordance with the Development Control Regulations and Building Regulations set out in the Fifth Schedule hereto.

(f) Plan to be submitted before building - That no building or erection to be erected or additions to be made hereafter shall be commenced unless and until specifications, plans, elevations, sections and details thereof shall have been previously submitted by the Lessee in triplicate for scrutiny of and be approved in writing by the Chief, Town and Country Planning Division of the Authority or the said Officer.

(g) To build according to Development Control Regulations and Building Regulations or Municipal Regulations in force from time to time - In the completion of any such building or erection thereof or addition thereto and at all times during the continuance of this demise to observe and to conform to the said Development Control Regulations and Building Regulations and to all bye-laws, rules and regulations of the Municipality or other body having authority in that behalf and any other statutory regulations as may be in force for the time being, relating in any way to the demised premises and any building thereon.

(h) Sanitation - To observe and conform to the Development Control Regulations and Building Regulations, all rules, regulations and bye-laws of the local authority concerned, or any other statutory regulations in any way relating to public health and sanitation in force for the time being and to provide sufficient latrine accommodation and other sanitary arrangements for the labourers, workmen and other staff employed on the demised premises in order to keep the demised premises and surroundings clean and in good condition to the satisfaction of the Metropolitan Commissioner and shall not without the previous consent in writing of the Metropolitan Commissioner permit any labourers or workmen to reside upon the demised premises and in the event of such consent being given shall comply strictly with the terms thereof.

(i) Alterations - That no alterations or addition shall at any time be made to any facade or elevation of any building or erection and standing on the demised premises or architectural features thereof except with the previous approval in writing of the said officer.

(j) To repair - Throughout the said term at the Lessee's expense well and substantial to repair, pave, cleanse and keep in good and substantial repair and condition (including all usual and necessary internal and external painting, color and white washing) to the satisfaction of the said *Officer the said building and the premises and drains, compound walls and fences thereunto belonging and all fixtures and all additions thereto.*

k) To enter and inspect -To permit the Metropolitan Commissioner and the officers, surveyors, workmen or others employed by him from time to time and at all reasonable times of the day during the term hereby granted after a week's previous notice to enter into or upon the demised premises and to inspect the state of repairs thereof and if, upon such inspection it shall appear that any repairs or any works are necessary, they or any of them may, by notice to the Lessee, call upon him to execute the repairs or such works and upon his failure to do so within a reasonable time the Lessor may execute them at the expense, in all respect, of the Lessee.

(l) Nuisance - Not to do or permit anything to be done on the demised premises which may be a nuisance, annoyance or disturbance to the owners, occupiers or residents of other premises in the vicinity.

(m) User - To use the demised premises for the purpose of..... only and for no other purpose.

(n) Indemnify - To indemnify and keep indemnified the Lessor against any and all claims for damage, which may be caused to any adjoining buildings or other premises in consequence of the erection of the aforesaid works and also against all payments whatsoever which during the progress of the work may become payable or be demanded by the Municipality or any local authorities in respect of the said works or of anything done under the authority herein contained.

(o) Delivery of possession after expiration - At the expiration or sooner determination of the said terms, quietly to deliver unto the Lessor the demised premises and all erections and buildings then standing or being thereon PROVIDED always that the Lessee shall be at liberty if he shall have paid the rent and all Municipal and other taxes, rates and assessments then due and shall have performed and observed the covenants and conditions herein contained prior to the expiration of the said term, to remove and appropriate to himself all buildings, erections and structures and materials from the said land but so nevertheless that the Lessee shall deliver up as afro said to the Lessor leveled and put in good order and condition to the satisfaction of the Lessor all land from which the buildings, erection or structures may have been removed. Provided further that after the possession of the demised premises has been delivered to or obtained by the Lessor, such building, erection or structure shall stand forfeited to the Lessor.

(p) Not to assign - Not to sell, mortgage, assign, underlet or sub-let or-part with the possession of the demised premises or any part thereof or any interest therein without the previous written consent of the Metropolitan Commissioner. Consent may be granted by the Metropolitan Commissioner subject to payment by the Lessee of a sum equal to 10 per cent of the stamp duty chargeable on the instrument of intended transfer under the Bombay Stamp Act, 1958 and further subject to such conditions as he may imposed in public interest. Provided that nothing shall be payable in case of the first transfer of the demised premises or a part thereof.

(q) Change in status of the Lessee - No change in the proprietary or partnership or a limited or unlimited company or of a registered or unregistered partnership firm to whom the plot is leased shall be recognized without the previous written consent of the Metropolitan Commissioner.

(r) Notice in case of death - In the event of death of the Lessee the person to whom the title shall be transferred as heir or otherwise shall cause notice thereof to be given to the Lessor within three months from such death.

4. *Recovery of Rent as Land Revenue*: If and whenever any part of the premium or the ground rent hereby reserved shall be in arrears, the same may be recovered from the Lessee as an arrears of land revenue under the provisions of the Bombay Metropolitan Region Development Authority Act, 1974, or any modification thereof for the time being in force.

5. *Re-entry*:- If the said rent hereby reserved shall be in arrears for the space of thirty days whether the same shall have been legally demanded or not, or if and whenever there shall be a breach of any of the covenants by the Lessee hereinbefore contained, or if the Lessee shall be adjudicated insolvent or bankrupt or shall renounce his character as such by setting a title in the third person or claiming a title in himself the Lessor may re-enter upon any part of the demised premises in the name of the

whole and thereupon the term hereby granted shall absolutely cease and determine and in that case no compensation shall be payable to the Lessee on account of ,With building or improvements built or carried out on the demised premises, or claimed by the Lessee on account of the building or improvements built or made. PROVIDED ALWAYS, that except for non-payment of rent as aforesaid, the power of re-entry hereinabove contained shall not be exercised unless and until the Lessor or the Metropolitan Commissioner on behalf of the Lessor shall have given to the Lessee or left on some part of the demised premises a notice in writing of his intention to enter and of the specific breaches of convenient in respect of which the re-entry is intended to be made and default shall have been made by the Lessee in remedying such breach or breaches within three months after the giving or leaving of such notice.

6. *Summary eviction of persons unauthorisedly occupying the Demised Land on determination of the Lease* :- If, on the determination of the lease, any person is found to be unauthorisedly occupying or wrongfully in possession of the demised premises, it shall be lawful for the Metropolitan Commissioner to secure summary eviction of such person in accordance with the provisions of the Bombay Metropolitan Region Development Authority Act, 1974, or any modification thereof for the time being in force.

7. *Notice and Demand*:- Any demand for payment or notice requiring to be made upon or given to the Lessee shall be sufficiently made or given if sent by the Lessor through the post by registered letter addressed to the Lessee at the demised premises and any demand or notice sent by post shall be deemed to have been delivered in the usual course of post.

Marginal Note-- The marginal notes do not form part of the Lease and shall not be referred to for construction or interpretation thereof.

IN WITNESS WHEREOF the Lessor and the Lessee have hereunto set and subscribed their hands and seal the day and year first above written.

FIRST SCHEDULE

TO

FIFTH SCHEDULE

SIGNED AND DELIVERED for and on
Behalf of the Mumbai Metropolitan Region
Development Authority by the hand of
Shri.....

In the presence of -

1.

2.

SIGNED AND DELIVERED by the within
named Lessee in the presence of -

1.

2.

FORM NO. A

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

FORM OF OFFER (DETAILS OF THE BID COST & EMD PAYMENT)

Instructions:

(a) Strike out whichever is not applicable.

(b) The applicant should initial all additions and alternations in this form.

(c) Where necessary, information may be furnished on separate sheets, which should be signed, and

(d) All necessary supporting documents required for proving the eligibility, registration and legality should be submitted.

1. Applicant's full Name / Address (Use block letters) :

Name	
Present address	
Permanent address	

2. I/We the Authorized Representative of the above-named Agency:

	Full Name	Designation
1.		
2.		

The details of the payment made:

Payment Head	**Amount**	**Details of the payment made**
Tender Cost	Rs	
EMD	Rs.	

Mumbai (Authorized representative's signatures)

Date: Full Name, Designation and the name of the Applicant Agency.

FORM NO. B

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

FORM OF OFFER (ELIGIBILITY PROPOSAL)

Instructions:

(a) Strike out whichever is not applicable.

(b) The applicant should initial all additions and alternations in this form.

(c) Where necessary, information may be furnished on separate sheets, which should be signed, and

(d) All necessary supporting documents required for proving the eligibility, registration and legality should be submitted.

2. Applicant's full Name / Address (Use block letters) :

Name	
Present address	
Permanent Address	

3. I/We the Authorized Representative of the above named Agency:

	Full Name	Designation
1.		
2.		

4. Eligibility & Competency Information:

(1) Competent to enter in to contract as per Indian Contract Act, 1872 :

a) Status of the organization (Attach copy of the proof) :-

_____

b) If Partnership Firm / JV / SPV, name of the partners / members :.....

_____

(2) Experience in running Food Court/ Restaurant during last 7 years :

Sr. No.	Name of the Food Court / Restaurant	Name of the owner	Period (From / To)	Nature of Business	Details of the Proof
1.					
2.					
3.					
4.					
5.					
6.					
7.					

(2) A company incorporated under the Indian Companies Act, 1956 authorized by Govt. of India to establish Petrol Pump / CNG station or distribute petrol / CNG / Petroleum Products.

(3) Gross Annual Turnover & minimum Net Worth of their last financial year as per the last audited Balance Sheet (Attach certificate of the Chartered Accountant) :

b. Gross Annual Turnover : Rs. _____/-

c. Net Worth : Rs. _____/-

5. If our offer is not accepted by the MMRDA, we are declared as non responsive bidder, the Earnest Money paid by us shall be returned to me/us without any interest

thereon. If our offer is accepted by the MMRDA and if we fail to pay the License Fee for the said bid within the time mentioned for the acceptance of our offer, the agreement concluded between us shall stand rescinded by the Authority and the earnest money paid by us under this offer shall stand absolutely forfeited to Authority.

6. We shall keep this offer valid for a period of **6 months**(or such mutually agreed extended period) effective from the date of opening of envelope -I of the offer and shall not revoke or vary it before the expiry of **6 months** from such date (or such mutually agreed extended period) and in the event of our failing to observe and perform this liability, the Earnest Money paid by us under this offer, shall stand absolutely forfeited to MMRDA.

3. We accept the appointment of the Metropolitan Commissioner, MMRDA as the Arbitrator.

4. This Bid and your written acceptance of it shall constitute a binding between us. We understand that you are not bound to accept any Bid you receive.

5. We hereby confirm that this Bid complies with the Bid validity and Earnest Money Deposit required to0 be paid as per this bid documents and specified in the Section II, General Instructions to Bid.

6. Any notice or letter of communication addressed to us at the address: _____

_____

_____will be deemed a valid and proper notice of intimation to us.

7. We declare that the information stated herein above is complete and absolutely correct and any error or omission therein, accidental or otherwise, will be sufficient justification for the MMRDA to revoke at any time acceptance of our offer for **Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)** for Thirty years.

8. We hereby declare that we have read and understood the conditions mentioned in the Bid document, and do hereby undertake to execute them when called upon to do so, and abide by the decision of the Authority.

9. I/We agree to abide by the decision of the Metropolitan Commissioner of the Authority regarding my/our eligibility.

Mumbai (Authorized representative's signatures)

Date: Full Name, Designation and the name of the Applicant Agency.

FORM NO. C

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

FORM OF OFFER (FINANCIAL PROPOSAL)

Instructions:

(a) Strike out whichever is not applicable.

(b) The applicant should initial all additions and alternations in this form.

(c) Where necessary, information may be furnished on separate sheets, which should be signed and

(d) All necessary supporting documents required for proving the eligibility, registration and legality should be submitted.

1. Applicant's full Name / Address (Use block letters) :

Name	
Present Address	
Permanent Address	

2. I/We the Authorized Representative of the above-named Agency:

	Full Name	Designation
1.		
2.		

desire and hereby make an offer for " **Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)"**

3. I am/We are/my/our principals are willing to pay the one-time **upfront lease premium** of Rs. _____/- (Rupees _____ _____only) and First year Lease Rent shall be paid within 15 days from the date of receipt of the offer and next year Lease Rent at the above rate will be paid in advance at least 15 days before the start of next year without any deductions whatsoever, failing which the security deposit shall be encashed without any intimation or notice and I/we shall reinstate the same by fresh guarantee

4. I am / We are / my / our principals are willing to pay Security Deposit equal 5 year rent of the lease period within 15 days from the date of receipt of Offer Letter but in any case before the execution of the License Agreement.

5. If my/our offer is accepted by the MMRDA and if I/We fail to pay for the Security Deposit and the Lease Rent for 1 year in advance within 15 days from the date of receipt of Offer Letter issued by the Authority, the agreement concluded between us shall stand rescinded by the MMRDA and the amount of Earnest Money Deposit paid by me/us under this offer shall stand absolutely forfeited to the MMRDA.

6. I/We shall keep this offer valid for a period of six months effective from the date of opening of e-Envelop - B of the offer and shall not revoke or vary it before the expiry of six months from such date and in the event of my/our failing to observe and perform this liability, the Earnest Money Deposit paid under this offer, shall stand absolutely forfeited to MMRDA.

7. e-Envelop - B of the offer and shall not revoke or vary it before the expiry of six months from such date and in the event of my/our failing to observe and perform this liability, the Earnest Money Deposit paid under this offer, shall stand absolutely forfeited to MMRDA.

8. I/We agree to abide by the decision of the Metropolitan Commissioner of the MMRDA regarding allotment.

9. **I**/We declare that the information stated herein above is complete and absolutely correct and any error or omission therein, accidental or otherwise, will be sufficient justification for the MMRDA to revoke at any time acceptance of my/our offer for Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

10. I/We hereby declare that I/we have read and understood the rules governing the Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL), inspected the title of the said supermarket & restaurant and its plans, examined the draft of various documents / agreements to be submitted / executed and do hereby undertake to submit / execute them when called upon to do so, and abid by the decision of the MMRDA.

Mumbai (Authorized representative's signatures)

Date: Full Name, Designation and the Name of the Applicant & the Agency with its stamp

FORM NO. D

MUMBAI METROPOLITAN REGION DEVELOPMENT AUTHORITY

Leasing of land for Leasing of land for Petrol Pump-2, Food Plaza-2 at Ch 19+900 Km along with built up structures & space reserved for Parking Area at Survey No-4A,4D,81/4P Village Jasai, Tal-Uran, Dist. Raigad for Atal Bihari Vajpayee Smruti Nhava Sheva Atal Setu (MTHL)

FORM FOR ATTENDING PRE-BID MEETING

Instructions:

(a) Only Two representatives of intending Bidders/ Company are allowed to attend the meeting.

(b) The intending Bidders must handover this Form-D in original duly filled-in to permit him entry to the pre-Bid meeting.

1. Applicant's (Company's) full name (Use block letters):

2. Full Name of the representatives who are attending the pre-Bid meeting (Use block letters)

Sr. No.	Name & Designation	Email ID	Mobile No.	Fax No.
1.				
2.				

(Authorized Representative's Signature,
Full Name, Designation
along with Stamp/Seal of the Company)